

right to frame laws and no outside authority can direct it to enact a law. Two months later, on December 9, BJP MP Kirodi Lal Meena moved a Private Member's Bill on the UCC amid strong Opposition protests. The bill, which proposes to constitute a National Inspection and Investigation Committee to prepare a UCC, has yet to be listed for debate.

If BJP insiders are to be believed, it is extremely unlikely that a parliamentary legislation can come into force before the 2024 election. The Law Commission has received over 10 million suggestions on the UCC and will require time to submit a comprehensive report to the government. "This exercise will take several months to complete," says Meghwal. "The Commission will meet people and stakeholders across the country. It will hold public meetings and discussions." Based on the Commission's report, the government will prepare a draft, which, considering the scope of the areas it requires to cover, cannot come in a hurry. There is only the winter session before the polls for any effective legislation on UCC. Besides, BJP insiders say, the government will also not move on the UCC until the G-20 meetings are over in September, as it will not want any controversy to mar its global image.

TESTING THE WATERS

Before it introduces any central legislation, the BJP is keen to test the waters in the states. With a rhetoric building over what the UCC portends for the minorities, especially Muslims, the Union government doesn't want a repeat of the public unrest that followed the passage of the Citizenship (Amendment) Act (CAA) and the three farm laws. While the outbreak of Covid effectively ended the massive agitation against the CAA, the protesting farmers of Punjab forced the Centre to withdraw the farm bills.

The minorities, including the Scheduled Tribes, fear that a common code will kill their traditions and subject them to majoritarian rules. While several organisations representing the Sikh, Christian and Parsi communities have expressed concern, Muslim groups have been the most vocal in their opposition. They believe the UCC will overturn the Sharia laws that govern their personal affairs and are closely tied to their religious identity. They claim the UCC violates Articles 25 and 29 of the Constitution, which protect a religious group's right to manage its affairs and the right to conserve its distinct culture, respectively. "The prime minister's call is an attempt to give a sectarian call to what is a matter of law. The UCC cannot be forced upon the minorities," the AIMPLB (All India Muslim Personal Law Board) said in a statement.

These concerns arise from the fact that not only has the BJP government passed a law criminalising triple talaq following a Supreme Court judgment, several party leaders have also routinely questioned Islamic practices such as the wearing of the hijab or held them responsible for "love jihad", alleging that Muslim men marry Hindu women and convert them to Islam.

Proponents of the UCC, however, say that a common set of laws will promote national integration—an argument even the courts uphold—and gender justice, something most personal laws are remiss on. They also assert that it's a constitutional goal laid out under Article 44 of the Constitution, in which the Directive Principles of State Policy include the exhortation that the "State shall endeavour to secure for the citizens a Uniform Civil Code throughout the territory of India". Many countries have common civil laws, including the United States, France, Italy, Ireland, Portugal, Spain, Sudan, Egypt and Turkey.



"It is still not clear what they mean by Uniform Civil Code. There is no formal government proposal. What needs to be uniformed?"

– ABHISHEK BANERJEE
General Secretary, TMC

Professor Tahir Mahmood, former Law Commission member and an authority on Islamic law, dismisses the apprehensions of Muslim clerics, saying there is nothing wrong in placing the whole nation under a single law on matters of family rights and succession. Kerala Governor Arif Mohammad Khan also alleges that the UCC has been misrepresented, contributing to the inaccurate narrative around it. "The objective of implementing a uniform civil code is to ensure equitable dispensation of justice to women from diverse religious backgrounds, encompassing matters such as marital conflicts and property inheritance disputes," the governor said in an interview to India Today TV.

Tribal communities, especially in the Northeast, have also strongly resisted the idea